

25STCV35884 25STCV35884

County: los-angeles

Division: Civil Law and Motion

Department: 316

Hearing date: 2026-08-11

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BACKGROUND

This case is an employment matter.

Plaintiff Angela To was employed by Defendant Team ABC, LLC. While employed

Plaintiff alleges that she was subjected to unlawful harassment, discrimination, hostility, and retaliation.

On December 9, 2025, Plaintiff filed a complaint against Defendants Team ABC, LLC and Ajay Beri. The complaint alleges fourteen employment-related causes of action stemming from the facts alleged above.

On March 12, 2026, Defendant Team ABC, LLC filed a Motion to Compel Arbitration ("Motion").

On June 30, 2026, Plaintiff filed an opposition.

A reply was served and appears to have been intended for filing on July 28, 2026, though it was not filed until August 10, 2026.

A sur-reply was filed with Court permission on August 4, 2026.

TENTATIVE RULING

Defendant's Motion to

Compel Arbitration is DENIED.

LEGAL STANDARD

A party to an arbitration agreement may summarily move or petition the court for an order compelling another non-compliant party to arbitrate their covered claims. (Code Civ. Proc., §§ 1281.2, 1290.2; 9 U.S.C. §§ 4, 6.)

California law, like Federal law, reflects a strong public policy favoring arbitration and the fundamental principle that arbitration is a matter of contract. (See *AT&T Mobility LLC v. Concepcion* (2011) 563 U.S. 333, 339; *Moncharsh v. Heily & Blase* (1992) 3 Cal.4th 1, 8-9.) “To further that policy, Code of Civil Procedure, section 1281.2 requires a trial court to enforce a written arbitration agreement unless one of three limited exceptions applies. Those statutory exceptions arise where (1) a party waives the right to arbitration; (2) grounds exist for revoking the arbitration agreement; and (3) pending litigation with a third party creates the possibility of conflicting rulings on common factual or legal issues.” (*Acquire II, Ltd. v. Colton Real Estate Group* (2013) 213 Cal.App.4th 959, 967 [internal citation omitted].) “[U]nder both the FAA and California law, ‘arbitration agreements are valid, irrevocable, and enforceable, save upon such grounds as exists at law or in equity for the revocation of any contract.’” (*Higgins v. Superior Court* (2006) 140 Cal.App.4th 1238; *Quach v. California Commerce Club, Inc.* (2024) 16 Cal.5th 562, 569; *Morgan v. Sundance* (2024) 596 U.S. 411, 419.)

On petition of a party to an arbitration agreement alleging the existence of a written agreement to arbitrate a controversy and where a party thereto refuses to arbitrate such controversy, the court shall order the petitioner and respondent to arbitrate if it determines an agreement to arbitrate the controversy exists. (Code Civ. Proc., § 1281.2; *Gorlach v. Sports Club Co.* (2012) 209 Cal.App.4th 1497, 1505 [noting that “when presented with a petition to compel arbitration, the trial court’s first task is to determine whether the parties have in fact agreed to arbitrate the dispute.”].)

The petitioner bears the burden of proving the existence of a valid arbitration agreement by a preponderance of the evidence, and the opposing party bears the burden of

proving any fact necessary to its defense by the evidentiary standard. (See *Gatton v. T-Mobile USA, Inc.* (2007) 152 Cal.App.4th 571, 579.)

Finally, “[i]f a court of competent jurisdiction, whether in this State or not, has ordered arbitration of a controversy which is an issue involved in an action or proceeding pending before a court of this State, the court in which such action or proceeding is pending shall, upon motion of a party to such action or proceeding, stay the action or proceeding until an arbitration is had in accordance with the order to arbitrate or until such earlier time as the court specifies.” (Code Civ. Proc., § 1281.4.) And similarly, under the FAA, a court is required to stay the proceedings for a case that has been referred to arbitration, upon application of one of the parties, during the pendency of such arbitration. (9 U.S.C. § 3.)

EVIDENTIARY OBJECTIONS

Plaintiff filed several objections to Ajay Beri’s declaration. The Court rules on the objections as follows:

SUSTAINED: Nos. 3-5, 7-8
(Lack of Personal Knowledge)

OVERRULED: Nos. 1, 2, 6

Ajay Beri states that he is one of Defendant’s “members”. (Beri Decl., ¶ 3.) Beri states that he is aware of Defendant’s onboarding procedures, its use of arbitration agreements, and its recordkeeping systems. (Ibid.) He further states that as part of the onboarding process, Defendant requires its employees to complete certain documents “through a secure online portal via Paychex/Oasis.” (Id., ¶ 5.) Beri then goes on to purport to describe the documentation process with no indication of the basis for his knowledge of the online portal run by another company. For this reason, the Court sustains the objections to paragraphs six through eight, ten and eleven to the Beri declaration.

DISCUSSION

I.

Existence
of Arbitration Agreement

The Court holds that Defendant
has not met its burden to show that there is a valid arbitration agreement
between the parties.

The party seeking
arbitration bears the burden of proving the existence of a valid arbitration
agreement by the preponderance of the evidence. (See *Gamboa v. Northeast Community Clinic* (2021) 72
Cal.App.5th 158, 164-65 (*Gamboa*)). This can be done “by attaching to the [motion or] petition a
copy of the arbitration agreement purporting to bear the [opposing party's]
signature.” (*Id.* at
165 [citing *Bannister v. Marinidence Opco, LLC* (2021) 64 Cal.App.5th
541, 219]). Alternatively, this burden can be met by setting forth the
agreement's arbitration provisions in the motion. (See *Gamboa, supra*, 72
Cal.App.5th at p. 165.)

Once the moving party
meets their burden, the opposing party may produce evidence challenging the
authenticity of the document. (See *ibid.*) The opposing party may do so
by “[testifying] under oath or declare under penalty of perjury that the party
never saw or does not remember seeing the agreement.” (*Ibid.*) If this
burden is met, the burden shifts back to the moving party to prove the contract
is authentic, including the authenticity of the signatures. (See *Ruiz v.*
Moss Bros. Auto Group, Inc. (2014) 232 Cal.App.4th 836, 845-46.) Doubts are
resolved in favor of arbitrability and ordinary rules of contract
interpretation (e.g., resolve doubts against the drafter) apply. (See *Greenspan*
v. LADT, LLC (2010) 185 Cal.App.4th 1413, 1437.)

Here, Defendant has set
forth the agreement's arbitration provision and attached a copy of the
agreement itself. (Motion, p. 6:8-12; *Beri Decl., Exh. A.*) Therefore, Defendant
has met its initial burden of proving the existence of a valid arbitration
agreement. (See *Gamboa, supra*, 72 Cal.App.5th at pp. 164-65.)

In opposition, Plaintiff disputes
the authentication of the agreement. Plaintiff asserts that *Beri* lacks personal
knowledge to authenticate the purported agreement. (See *Opposition*, pp. 9:27-11:9.)
The Court agrees. (See *Evidentiary Objections.*) *Beri* provides no basis for his

purported knowledge of the described online portal run by a third party.

Plaintiff also submits a

declaration stating that she does not recognize the purported arbitration agreement, and does not recall ever receiving, reviewing or signing the agreement and denies agreeing to arbitrate any disputes relating to her employment with Defendant. (Declaration of Angela To, ¶¶ 3-8.) She declares she was never told she was being asked to sign any arbitration agreement and was never to her knowledge provided with a copy of any signed arbitration agreement. (Id., ¶¶ 3, 4.) Notably, Plaintiff's counsel declares that her office sent a written request to Defendant Beri for Plaintiff personnel file and every document Plaintiff signed during her employment and Defendant did not provide the purported arbitration agreement. (Declaration of Nikka Maleki, ¶¶ 3, 4.) Finally, Defendant Beri indicates in his declaration that Plaintiff was provided with the arbitration agreement during her onboarding process (see Beri Decl., ¶ 5) but as Plaintiff notes in her declaration, the purported arbitration agreement has a date in December of 2020 and Plaintiff had her onboarding process in 2016. (To Decl., ¶5.)

Accordingly, Plaintiff has

met her burden of challenging the authenticity of the agreement. (See Gamboa, supra, 72 Cal.App.5th at p. 165.)

Defendant filed a reply with

two declarations seeking to rebut Plaintiff's evidence and proving that the agreement is authentic, including the authenticity of the signatures. Defendant submits another declaration from Beri. This declaration explains that while Plaintiff was hired in 2016 and the purported agreement was dated in 2020, that is because a third-party was engaged to administer certain of Defendant's human resources functions in 2020. Beri does not purport to have any personal knowledge of Plaintiff being provided or signing the agreement. Second, Defendant provides a declaration of Luis Torres of the third party, Oasis. Torres states that the employer must give the employee the unique Client ID number and PIN for the employee to complete the onboarding process. Torres does not purport to have knowledge as to whether this happened with Plaintiff. The Torres declaration then attached a two-page document stating that certain documents were completed by "Employee."

The Court does not find

that these declarations cure Defendant's failure to properly authenticate Plaintiff's agreement to arbitrate. First, submitting these declarations with

the reply brief is improper. Beri's declaration deviates materially from the process described in his initial declaration, in which he indicated Plaintiff signed the agreement as part of Plaintiff's onboarding process, not four years later as his supplemental declaration states. The Torres declaration should also have been submitted with the motion as it was apparently Oasis, not Defendant, that oversaw the presentation of the agreement to employees for review and signature. Second, the Court does not find that the late-filed declarations are sufficient to rebut Plaintiff's evidence that she did not sign the agreement. Neither Beri nor Torres have actual knowledge that Plaintiff signed the agreement. Beri appears to have no knowledge at all and Torres simply has a printout that says the agreement was signed by "Employee" but no knowledge of whether Defendant gave Plaintiff the information needed to access the agreement and whether it was actually Plaintiff who signed it.

Plaintiff raises the additional argument that even if the agreement were properly authenticated, it could not be used to compel arbitration of Plaintiff's claims because Defendant did not sign the purported arbitration agreement or even purport to agree to it. Rather, the agreement states that "I and Oasis agree that any legal dispute with my Worksite Employer, Oasis, or any other party that may have an employment relationship with me arising out of or in connection with my employment . . . will be resolved exclusively through binding arbitration . . ."

(Beri Decl., Exh. 1 at 1.) Thus, it appears that even if this were an enforceable agreement, it would be enforceable only as to Plaintiff and Oasis, not as to Defendant. In other words, Defendant has not agreed to arbitrate claims it might have against Plaintiff. The Court does not find this unilateral agreement by Plaintiff to give up the right to pursue claims in court to be enforceable by Defendant even if the Court were persuaded Defendant had sufficiently authenticated the agreement.

The Court finds that Defendant has failed to meet its ultimate burden to show a valid arbitration agreement.

CONCLUSION

For the foregoing reasons, Defendant's Motion to Compel Arbitration is DENIED.